



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**UTHURU KALUTARA PAURANIKA KANDE
VIVEKARAMA VIHARASTHA DEVELOPMENT
FUND (INCORPORATION)
ACT, No. 15 OF 2000**

[Certified on 22nd May, 2000]

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Viharastha Development Fund (Incorporation)
Act, No. 15 of 2000*

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L.D.—O. 49/97.

AN ACT TO INCORPORATE THE UTHURU KALUTARA PAURANIKA
KANDE VIVEKARAMA VIHARASTHA DEVELOPMENT FUND.

WHEREAS an Association called and known as the “Uthuru Kalutara Pauranika Kande Vivekarama Viharastha Development Fund” has heretofore been established in Sri Lanka for the purpose of carrying out and transacting all objects and matters connected with the said Association according to the rules agreed to by its members:

Preamble.

AND WHEREAS the said Association has heretofore successfully carried out and transacted the several objects and matters for which it was established and has applied to be incorporated and it will be for the public advantage to grant such application:

BE it therefore enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows:—

Short title.

1. This Act may be cited as the Uthuru Kalutara Pauranika Kande Vivekarama Viharastha Development Fund (Incorporation) Act, No. 15 of 2000.

2. From and after the date of commencement of this Act, such and so many persons as now are members of the “Uthuru Kalutara Pauranika Kande Vivekarama Viharastha Development Fund” (hereinafter referred to as “the Association”) or shall hereafter be admitted as members of the Corporation hereby constituted, shall be a body corporate with perpetual succession, under the name and style of “Uthuru Kalutara Pauranika Kande Vivekarama Viharastha Development Fund” (hereinafter referred to as “the Corporation”) and by that name may sue and be sued in all courts, with full power and authority to have, and use, a common seal and to alter the same at its pleasure.

Incorporation
of the Uthuru
Kalutara
Pauranika
Kande
Vivekarama
Viharastha
Development
Fund.

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General Objects
of the Corpora-
tion.

3. The general objects of the Corporation are declared to be :—

- (a) to maintain the shrine room, Dhamma Salawa, residential quarters of Bhikkus, Dagoba, Bodhi enclosure and all other buildings of the Uthuru Kalutara Pauranika Kande Vivekarama Maha Viharaya and to construct and maintain new buildings and other structures;
- (b) to construct and maintain an appropriate approach road to the Viharaya and to develop the premises belonging to the Viharaya ;
- (c) to collect and preserve historical data relating to the Viharaya and biographies, and writings relation to memories of its past incumbents and the articles used by them and ; to establish and maintain a museum for that purpose;
- (d) to manage and develop the Sri Seelawamsa Dhamma School affiliated to the Viharaya;
- (e) to maintain and develop the four devalayas, attached to the Viharaya and to conduct the annual procession of the four devalayas;
- (f) to re-organize and manage the “Punyawardena Upasaka Upasika Samithiya of the Viharaya”;
- (g) to promote the religious, cultural, educational and economic advancement and social development of the rural community of Sri Lanka ;
- (h) to engage in relief and welfare activities for the benefit of the people in the area ;
- (i) to maintain friendly relations with other Buddhist organizations within and outside Sri Lanka ; and
- (j) to do all such other acts and things as are conducive or incidental to the attainment of the above objects.

4. (1) The affairs of the Corporation shall, subject to the rules in force for the time being of the Corporation, be administered by a Committee of Management consisting of office bearers and such other persons as may be provided for in such rules and elected, appointed or nominated in accordance therewith.

Management of the affairs of the Corporation.

(2) The first Committee of Management of the Corporation shall be the Committee of Management of the Association holding office on the day immediately preceding the date of commencement of this Act.

5. Subject to the provisions of this Act and any other written law the Corporation shall have the power —

General powers of the Corporation.

- (a) to acquire, and hold, any property, movable or immovable, which may become vested in it by virtue of any purchase, grant, gift, testamentary disposition or otherwise;
- (b) to sell, mortgage, lease, exchange or otherwise dispose of any such property;
- (c) to appoint, employ, remunerate, exercise disciplinary control over, and dismiss, such officers and servants as may be necessary for the purpose of carrying out the objects of the Corporation;
- (d) to receive grants, gifts or donations in cash or kind whether from local or foreign sources;
- (e) to open, operate and close bank accounts and to borrow or raise money with or without security ;
- (f) to invest moneys belonging to the Corporation in such securities as may be determined by the Committee of Management ; and
- (g) to do all such other acts and things as are incidental or conducive to the carrying out of the objects of the Corporation.

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Fund of the
Corporation.

6. (1) The Fund of the Corporation shall consist of —

- (a) all moneys lying to the credit of the Association on the day immediately preceding the date of commencement of this Act which shall stand transferred to the Corporation with effect from that date; and
- (b) all moneys that may accrue to the Corporation after the date of commencement of this Act.

(2) All moneys lying to the credit of the Fund of the Corporation shall be utilized to defray the expenses incurred in the management of the affairs of the Corporation and the accomplishment of its objects.

Rules of the
Corporation.

7. (1) It shall be lawful for the Corporation from time to time at a general meeting and by a majority of not less than two thirds of the members present and voting to make rules, not inconsistent with the provisions of this Act or any other written law, for all or any of the following matters:—

- (a) the election, appointment or nomination of the members of the Board of Management and their powers and duties and terms of office ;
- (b) the powers, conduct of duties and functions of various officers, agents and servants of the Corporation ;
- (c) the procedure to be observed at, the summoning and holding of, meetings of the Corporation and of the Committee of Management, the time, place, notice and agenda of such meetings, the quorum therefor and the conduct of business thereat;
- (d) the qualifications and disqualifications for membership of the Committee of Management and of the Corporation;

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- (e) the administration and management of the property of the Corporation, the custody of its funds and maintenance and audit of the accounts; and
- (f) generally, for the management of the affairs of the Corporation and the accomplishment of its objects.

(2) Any rule made under subsection (1) may at a like meeting and in like manner be amended, altered, added to or rescinded.

(3) The rules of the Association in force on the day immediately preceding the date of commencement of this Act shall, in so far as they are not inconsistent with the provisions of this Act or any other written law, be deemed to be rules made under this section.

(4) All members of the Corporation shall be subject to the rules in force for the time being of the Corporation.

8. (1) The Committee of Management of the Corporation shall cause proper books of accounts to be kept of the income and expenditure of the Corporation.

Accounts of
the
Corporation.

(2) The accounts of the Corporation shall be audited by a qualified auditor appointed by the Committee of Management of the Corporation.

9. The income and property of the Corporation howsoever derived shall be applied solely towards the promotion of the objects as set forth herein, and no portion thereof shall be paid or transferred directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to the members of the Corporation.

Application of
income and
property of the
Corporation.

10. All debts and liabilities of the Association existing on the day immediately preceding the date of commencement of this Act shall be paid and discharged by the Corporation hereby constituted and all debts due to, and subscriptions and contributions payable to, the Association on that day shall be paid to the Corporation for the purposes of this Act.

Debts due by or
payable to the
Association.

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How the seal of
the Corporation is
to be affixed.

11. The seal of the Corporation shall be in the custody of the Secretary and it shall not be affixed to any instrument whatsoever except in the presence of the Secretary and the President who shall sign their names to the instrument in token of their presence and such signing shall be independent of the signing of any person as a witness.

Saving of the
rights of the
Republic and
others.

12. Nothing in this Act contained shall prejudice or affect the rights of the Republic or any body politic or Corporate or of any other persons except such as are mentioned in this Act and those claiming by, from, or under, them.

Sinhala text to
prevail in case of
inconsistency.

13. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, The Sinhala text shall prevail.

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